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MASTER LEGAL PLAN — Rahman v. UHS et al., 3:26-cv-00197 (N.D.N.Y.)

Synthesis of the full strategy package — 2 Aug 2026. For Dr. Rahman and counsel (Drazen) only. Not for filing, service, or disclosure. Nothing in this document guarantees any outcome; all merits language is probabilistic.

Labeling rules (binding on every page): every dollar figure carries **DOCUMENTED** (record in hand) / **ESTIMABLE** (identified records, computation pending) / **ASSERTED** (client statement or posture only). Every case citation is **VERIFIED** on CourtListener (CL id given) per `data/research/r1-r4`; anything else is flagged **[unverified — confirm with counsel]**. The **\$100M anchor / \$40M acceptance threshold** are **NEGOTIATION POSTURE ONLY** (client directive) — never pleadable, Rule 11 / mediator-credibility caveat applies to every use, counsel approval required.

1. BLUF — Where the Case Stands

One sentence: a pled four-count federal case with an unusually clean factual spine (13 days, 24 hours, NOT GUILTY) whose biggest value — malicious prosecution, NYSHRL, FMLA — is **not yet in the complaint**, and whose cheapest, most-wanted relief (clean record, licensure path, USCIS-safe narrative) is the client’s true first-order objective and the reason this case can settle by November.

The two clocks:

Clock	Date	What dies if missed
MP state-tort rail (CPLR 215(3) [unverified — confirm with counsel], 1 yr from Sept 2025 acquittal)	~Sept 2026 — weeks away	The uncapped NY malicious-prosecution claim against the private defendants — the cleanest targets (no immunity, no notice-of-claim). Federal §1983 rail stays open to ~Sept 2028 (<i>Owens v. Okure</i> , CL 112166; <i>McDonough</i> , CL 4631414) but needs a harder joint-action showing. GML 50-e(5) late-notice option vs. public actors closes ~Dec 2026 — decide by Nov.
Court-ordered mediation	Nov 2026	Leverage. Drazen will not mediate without defendants' discovery responses; discovery and the amendment must land first.

The number architecture (one table):

Layer	Figure	Label
Tier 1 — documented core (floor/BATNA + all non-monetary must-haves)	\$1.22M–\$1.60M	DOCUMENTED/ESTIMABLE — largest line (Florida contract \$1.05M–\$1.12M) is DOCUMENTED-PENDING/ASSERTED until the executed instrument is in counsel's hands (Flag 4)
Tier 2 — realistic trial range (where the mediator prices)	\$4.34M–\$16.57M	ESTIMABLE — canonical band, <code>damages_model.json</code> (compensatory \$2.09M–\$6.70M + punitive \$2M–\$8M conditional + fees \$250K–\$750K)
Model-implied settlement zone	\$2M–\$7M today; \$5M–\$12M if discovery + amendments land — plus full non-monetary package	ESTIMABLE — assumption-laden
Tier 3 — exposure-ceiling framing	~\$100M	ASSERTED / NEGOTIATION POSTURE ONLY — runaway-jury scenario; Rule 11 / mediator-credibility caveat

Layer	Figure	Label
Acceptance threshold	\$40M	NEGOTIATION POSTURE (client directive) — ~2.4× the top of the defensible Tier 2 range; same caveat; counsel must own the gap with the client before mediation

Top 3 moves this month (August):

#	Move	Why now
1	Confirm exact acquittal date + charging instrument (information vs. indictment) + NDNY amendment deadline; file the omnibus amendment (NY malicious prosecution, §1983 MP, NYSHRL + §296(6), FMLA-willful, Rehab Act)	The ~Sept 2026 rail and the unconfirmed scheduling-order deadline are the two highest-leverage unknowns; the amendment unlocks the entire uncapped damages architecture
2	Serve discovery + preservation letters / third-party subpoenas now — academic record first (Drazen's demand #1), then ANSCO CCTV, Nadeem phone/texts, Guthrie call-and-poster file, DA file/subpoena copy	Mediation is only worth attending with productions in hand; the three evidence keystones (CCTV, texts, DA file) drive the probable-cause fight
3	Resolve the Florida-contract execution contradiction and paper the damages model (executed instrument + client's criminal-trial testimony; bank wires, pharmacy records, economist, psych corroboration)	Until resolved, the biggest compensatory line and the "13 days" narrative are DOCUMENTED-PENDING/ASSERTED and cannot be used externally; each record upgrade ratchets the defensible mid upward

2. The Legal Story (cold open — verbatim from `legal-story.md`)

He came to this country to be a doctor, and he became a good one — good enough that when his own hospital tried to put him on probation, the current head of medical education wrote that it was “very inhumane for you to put this kid on probation... he’s a good doctor” (00:26:23). He is also a cardiac patient: Brugada syndrome, an implanted defibrillator that is supposed to be checked every four months (00:32:39).

*On **April 1**, by his account, he signed a three-year Florida attending contract — **\$350,000 salary plus \$70,000 bonus** (DOCUMENTED-PENDING / ASSERTED — executed contract not yet in counsel’s possession; see OPEN FACTUAL FLAG 2) (00:13:03). **Thirteen days later, on April 14**, UHS placed him on probation **without telling him** (00:14:21) — he and his treating physician learned of it only afterward (“He didn’t know I was on probation. I didn’t know I was on probation,” 00:26:23) — on paperwork he alleges carries **a forged signature** UHS itself possesses (00:56:56). That same day he invoked FMLA (00:14:21, 00:43:40). And on that same **April 14** — the canon’s date for the arrest-day events (00:42:37; see OPEN FACTUAL FLAG 3) — on the day he was scheduled to fly down for the Florida interview (00:14:21), he was arrested: police were waiting at his car as he went to get his laptop **to write his FMLA document** (00:14:21, 00:55:54). In May, a Vermont offer was “taken away” (00:13:03). The call to police came from Guthrie, not from the complainant (00:40:05). His photograph went up “all across the hospital — if you see this person please call the police” (00:42:37); the poster spread inside UHS until a nurse messaged him, “is this you?” (01:08:55).*

*Then the institutions told on themselves. **Within roughly 24 hours** the administrative leave was lifted, every internal investigation at both hospitals was dropped, and UHS asked him to come back to work (00:43:40). Though its own rules made an arrest on probation immediately fireable, UHS — on a decision made by its corporate legal team, not the program (00:47:06, 00:50:15) — kept him, and graduated him (00:45:36). “You knew I was not guilty before anybody else did” (00:54:36). Yet UHS then handed the DA*

his academic records and cut off his email (00:45:36, 00:51:14), and the prosecution ran on for more than a year. He refused a diversion deal because USCIS “go like, well, if you were not guilty why you take the course” (01:03:33). In **September 2025 a jury found him NOT GUILTY** — favorable termination confirmed by counsel (01:02:46).

The acquittal did not give him his life back. The licensing questionnaire asks “have you ever been arrested — not charged, not acquitted, just arrested” (01:01:30). Three immigration attorneys say the arrest record endangers his status despite acquittal (01:02:46). He still cannot pick up his medical license (00:33:46). He has not practiced medicine for three years (01:03:33). His family has spent close to **\$1,000,000** in documentable living expenses (ESTIMABLE — bank records, 00:32:39), his father wiring ~**\$300,000/year** structured as loans (ESTIMABLE — bank statements, 00:28:43), while he went without a **\$4,000-a-bottle** essential medication (ASSERTED, 00:27:22) and his defibrillator went three years unchecked (00:32:39).

This lawsuit is the only instrument that can repair the record, reopen the licensure path, and give USCIS a truthful narrative. The ask is not vengeance. It is accountability, record repair, and making sure this cannot happen to the next resident. **We are on the right side of this conversation — the goal is accountability and sustainable change, not punishment.**

Full theory, audience variants (mediator / defense counsel / jury), and open factual flags: `strategy/legal-story.md`.

3. Claims & Probability (from `win-probability.md` — probabilistic estimates, never guarantees)

#	Claim	Status	P(survive dispositive)	P(prevail survive)	Damages weight	Fees	Grade
1	Title VI (national origin, intentional)	Pled	50–65%	30–45%	Economic only (<i>Cummings</i> CL 6463720 / <i>Barnes</i> CL 121152)	YES \$1988(b)*	B
2	Tortious interference (FL contract; VT offer)	Pled	55–70%	35–50%	Largest compensatory + punitive vehicle	No	A–
3	Breach of contract (residency/GME policies)	Pled	60–75%	40–55%	Modest; records hook	No	B–
4	Injunctive/declaratory — record correction	Pled	65–80%	55–75% (meaningful relief)	Non-monetary — client’s #1 objective	Via Title VI	A
5	FMLA interference/retaliation	Amend	55–70% (if timely)	45–60%	Economic ×2 liquidated	YES — mandatory*	A– (timeliness-gated)
6	NYSHRL (nat’l origin + disability) ± Rehab Act	Amend	55–70%	40–55%	Uncapped distress + punitives (<i>Chauca</i> CL 7170278)	YES — asymmetric*	A–

#	Claim	Status	P(survive dispositive)	P(prevail survive)	Damages weight	Fees	Grade
7	Malicious prosecution — NY tort rail	Amend by ~Sept 2026	45–60%	30–45%	Distress + special damages + punitives	No	B+ (deadline-critical)
8	Malicious prosecution — §1983 rail	Amend	35–50%	25–40%	Constitutional-tort damages	YES §1988(b)*	B–

*Fee statutes are official-source text, [unverified — confirm with counsel].

Composite: P(at least one significant claim survives to trial-ready posture) $\approx$ **80–90%** — independent legal theories on one strong factual spine. That composite plus monthly fee-shifting accrual is what prices the November mediation. **Known fault line moving several bands at once:** the unresolved **2022-vs-2024 operative-year discrepancy** (flips FMLA/NYSHRL timeliness) — Update Trigger #1.

4. Damages Ladder (from `damages-architecture.md` ; machine canon `damages_model.json`)

Tier	Range	Character	Key components (label)
1 — Documented core	\$1.22M–\$1.60M	Floor / BATNA (with non-monetary must-haves)	FL contract \$1.05M–\$1.12M (DOCUMENTED-PENDING/ASSERTED — Flag 4); medical bills \$40K + Cornell \$13K + car \$44K + civil legal \$35K (DOCUMENTED); travel \$40K, meds $\leq$ \$180K, ICD-gap $\leq$ \$50K, mother's salary $\leq$ \$71K, board fee $\leq$ \$2.5K (ESTIMABLE)
2 — Realistic trial range	\$4.34M–\$16.57M	Where the mediator prices; verified-law arithmetic	Back pay \$1.12M–\$1.47M (ESTIMABLE); front pay \$700K–\$3.5M (ESTIMABLE — expert required , <i>Tarpley</i> CL 4680173 zeroes undocumented claims); consequential \$172K–\$475.5K (MIXED); distress \$100K–\$1.25M NYSHRL/NY-torts only (ESTIMABLE — psych corroboration required); FMLA doubling \$0–\$1.12M (ESTIMABLE — conditional); punitives \$2M–\$8M at ~1:1–2:1 (<i>State Farm</i> CL 127910; <i>Turley</i> CL 8442054) (ESTIMABLE — conditional; disclose the punitive-base assumption); fees \$250K–\$750K (ESTIMABLE)
3 — Exposure ceiling	~\$100M	ASSERTED / NEGOTIATION POSTURE — runaway-jury construction; all seven listed assumptions must break plaintiff's way; never a valuation	Lifetime earnings \$10M (ASSERTED) + distress \$2M (ASSERTED) + consequential \$0.5M $\rightarrow$ \$12.5M $\times$ 7:1 (<i>Zhang</i> CL 783131 — 9th Cir., persuasive only) + fees

Anti-double-count rule: the ~\$1M living expenses and ~\$300K/yr paternal loans (\$223.8K already DOCUMENTED via 38 hash-chained wires) are the *same dollars* as the lost-income gap — corroboration, never addition. **Remedies channeling:** no distress or punitives under Title VI/FMLA (*Cummings/Barnes*); route both through NYSHRL + NY torts. **Non-monetary must-haves (non-negotiable at any price):** record correction/expungement; board-safe verification letters; USCIS-usable stipulation; neutral-reference protocol; institutional-change component.

5. Pressure Points — One Row per Defendant (from [pressure-point-map.md](#))

Defendant	Biggest fear	Sharpest contradiction	Key instrument	Pressure
UHSH (Binghamton 501(c)(3), EIN 16-1165049 — not Universal Health Services, not UnitedHealth Group)	Corporate-legal fingerprints on the April 14 leave + 24-hr reversal; pattern/Title VI regulatory echo; spoliation (never-produced ANSCO CCTV); fee clock	AF 6 vs. AF 8 : “legitimate business decisions” <i>and</i> “outside scope, not authorized” — both cannot be true of the same acts	Contention interrogatories + 30(b)(6); complete academic record vs. DA-produced set; UHS–Guthrie legal-team communications	9/10
Dr. Ahmed (separate counsel — Hancock Estabrook)	Fired over the client’s HR complaint (ASSERTED — personnel file demanded); AF 8 pre-abandonment; uninsurable personal punitive exposure	Denies “authority over Plaintiff” — falsifiable by rotation schedules (DOCUMENTED), evaluations he signed, the zero-patients week	Divergence play: ask UHSH about his authority, ask him about program decisions	7/10 — most likely early separate peace
Dr. Nadeem	His phone — constant texts with complainant and her brother; keystone of the instigation theory (<i>Broughton</i> CL 5681499; <i>Rothstein</i> CL 786706)	The criminal theory required UHS-internal knowledge (probation status) the complainant shouldn’t have had — the only mapped channel is him	Carrier subpoena + personal spoliation letter now; depose last, net closed	7/10 — settles for cooperation if texts are as described
Dr. Rehman	His own UHS-wide COI step-down email; dual role (GME head + client’s electrophysiologist); alleged chart manipulation → OPMC/licensure exposure beyond this suit	Wrote the conflict-of-interest standard he’s accused of breaking	EHR audit trail/metadata demand; lock mother/DA-witness accounts before his deposition	8/10 — most motivated for global peace pre-deposition
Dr. Ali	The probation document — unilateral signature (DOCUMENTED), alleged forgery (ASSERTED — handwriting/ESI exam pending; DA’s “43 of the forgery” doc corroborates the issue was live)	Cannot be messenger (his account) + legitimate decision-maker (AF 6) + unauthorized actor (AF 8) at once; “I guess a fiancée is considered family” concedes the FMLA predicate	Native-metadata RFP for every draft; forensic signature exam; deposition pairing the slip with the FMLA file	8/10 — binary forgery risk; watch for counsel substitution
<i>Guthrie (non-party)</i>	Witness → co-conspirator drift: their call to police, their posters, their employee-complainant, their 24-hr stop	—	Preservation letter now ; Rule 45 (call record, poster approval chain, CCTV/security logs)	7/10 (as leverage)
<i>Broome DA (non-party)</i>	None — prosecutors immune (<i>Imbler</i> CL 109387). Records source, not target.	The office “knew otherwise” about the probation while the defense denied it existed	FOIL post-acquittal; grand-jury application if needed [unverified — confirm with counsel]; by-the-book only	5/10, derivative

6. Obstacle → Counter (top 10 of 27 — full matrix in [obstacle-counter-matrix.md](#))

#	Obstacle	Best counter	Risk
O-1	MP state SoL ~Sept 2026 — count not in complaint	File the amendment now , calendared off the confirmed acquittal date; fallback: protective state-court action. Never	H until filed

#	Obstacle	Best counter	Risk
		rely on relation-back	
O-21	Amendment-deadline unknown — NYSHRL/FMLA/MP all unpled	Confirm the NDNY scheduling-order deadline immediately; one omnibus amendment before ~Sept 2026	H until confirmed
O-6	Acquittal ≠ no probable cause (<i>Rothstein</i> CL 786706)	Build from initiation-time facts: 24-hr reversal + falsifiable “lied about a job offer” theory — but do not deploy the contract counter until the 00:13:03 vs. 00:14:21 execution contradiction is resolved	M — the battleground
O-7	DA's independent judgment / witness immunity breaks causation	Show continuing reliance on defendant-supplied false/incomplete material (probation file, withheld CCTV, Rehman → Nadeem hand-off; <i>Present v. Avon</i> CL 6162502)	M–H
O-5	<i>Colon</i> presumption if indicted (CL 5686686)	Confirm the charging instrument first ; if indicted, rebut with the suppression/falsity record; CPL 190.25(4) motion [unverified]	M–H / L
O-13	Academic deference (<i>Horowitz</i> CL 109809 — 435 U.S. 78, fix the 438 miscite; <i>Ewing</i> CL 111549)	Win the <i>characterization</i> : secret, unilateral, allegedly forged probation is not academic judgment; piercing routes <i>Doe v. NYU</i> CL 398023, <i>Branum</i> CL 557202, <i>Ezekwo</i> CL 566006	M
O-14	HCQIA/peer-review immunity — <i>Poliner</i> (CL 62897) reversed ~\$33M to zero	Sham-process facts (24-hr reversal); whipsaw with O-13: academic or peer review — force them to pick one	M
O-10	Cummings bar — no distress/punitives under Title VI	Re-architect, not retell: Title VI carries economic + equitable + fees; route distress/punitives through NYSHRL (<i>Chauca</i> CL 7170278) + NY torts (<i>Ross</i> CL 2032322)	L once amended
O-22	Ratio compression (<i>State Farm</i> CL 127910; <i>Turley</i> ~2:1 CL 8442054; <i>Payne</i> CL 820691)	Grow the compensatory base, not the multiplier; stack non-compressibles (FMLA doubling, three fee statutes, uninsurable individual exposure)	M
O-27	The \$100M anchor itself — Rule 11 / mediator-credibility risk	Anchor with architecture, not a naked number; posture figure used once, by counsel, as aspiration-vs-acceptance framing, immediately tied back to components; lead with the non-monetary demand set	M — discipline in the room

7. Mediation Game Plan

See `mediation/mediation-execution-plan.md` for the full execution plan. The two governing principles, fixed here:

- 1. Discovery before mediation.** Drazen will not mediate without defendants' discovery responses (00:05:23); backward-plan every demand from the November 2026 deadline. Arrive with productions, the spoliation record, and the amendment granted — the leverage index moves ~6.5/10 → ~8/10 if the academic record, CCTV, and texts land first.
- 2. Non-monetary demands are cheap wins — lead with them.** Record correction, board-safe verification letters, the USCIS stipulation, and reform terms cost defendants little, serve the client's true first-order objective, prove the theme (*accountability and sustainable change, not punishment*), and are treated as **equivalent to the first several million dollars** in any trade-off. Money then prices the remainder rather than defining the negotiation. Open with Tier 1 receipts; argue in Tier 2; deploy Tier 3 once, in caucus, as the carrier's tail risk — never as our valuation.

8. The 16 Action Items — With Pacing

Pacing rules (from `pacing_digest.md` ; March state was a 12% recovery crash — Aug 2 shows improvement): SoL-critical inputs go first regardless of load but batched into single sittings; **max 2 substantive tasks/week for Faraaz**; retrieval tasks batched into one low-effort block; emotionally heavy tasks (re-reading academic records, bad-faith evidence) never stacked in the same week, each followed by a light week; Haseeb carries the information-collection channel; **cardiac device check scheduling is itself an action item — health before litigation.**

ID	Item (owner)	Load	Pacing slot
DZ-01	Finish and serve discovery demands — academic record first, ~14 consolidated demands (Drazen)	Counsel	Now — feeds everything
DZ-02	Evaluate MP viability/timeliness vs. police/ancillary actors (Drazen — skeptical but reviewing)	Counsel	Now — SoL-critical
DZ-03	Sequence mediation after discovery responses; complete by Nov 2026 (Drazen)	Counsel	Standing
DZ-04	Follow-up family call (Drazen)	Light	Soon
SH-01	Names of the two complaint-filing doctors + two fired Indian physicians (Faraaz + mother)	Light	Week 1 — SoL-relevant, batch with FR-04
FR-04	List of 2021/2022 official complaints against Dr. Ahmed (Faraaz)	Light-retrieval	Week 1 batch
FR-05	Print senior resident's "don't complain" iMessages (Faraaz)	Light-retrieval	Week 1 batch
FR-01	Bank records: father's ~\$300K/yr transfers, Dubai payments, living expenses (Faraaz)	Substantive	Week 2 (one sitting; AI pre-analysis done)
HB-01	Collect and send "all that information" incl. "43 of the forgery" materials (Haseeb)	Family channel	Weeks 1–2, parallel
FR-02	Mark up academic records — every unfair/inaccurate entry → correction demand (Faraaz)	Heavy — emotional	Week 3, alone; light week after
FR-03	Locate 2022 ten-page GME rebuttal email (Faraaz; work-email demand is fallback)	Light-retrieval	Week 4 batch
FR-06	Annotate the ~4,000-page archive; deliver compiled document (Faraaz)	Heavy	Weeks 5–6, split; never same week as FR-02
FR-07	Initiate ACGME complaint (Faraaz; Drazen: "that's fine")	Substantive	Week 5–6 — pre-mediation leverage
FR-08	Send circulated CCTV "poster" image (Faraaz)	—	✅ Completed during call (01:10:28)
FR-09	"\$100 million with a base of 10" document check — referent never clarified	Light	Clarify with client; unclear_referent
FAM-01	Call Drazen from the Verizon phone (family)	Logistics	Ongoing

Unlisted but binding per pacing rules: schedule the ICD device check (unchecked ~3 years — DOCUMENTED lapse).

9. Standing Honesty Note

- **Evidence labels.** Every dollar figure above is tagged DOCUMENTED / ESTIMABLE / ASSERTED. Largest open upgrades: the executed Florida contract (Flag 4 — the canon self-contradicts, 00:13:03 “signed April 1” vs. 00:14:21 “never signed it”; nothing external may rely on the contract until the instrument is in counsel’s hands), remaining paternal-loan wires, pharmacy records, psych corroboration.
- **Citations.** Every case cited here is VERIFIED on CourtListener (CL id in text) in `data/research/r1-r4`. All statutes (CPLR 215(3)/214(5), GML 50-e/50-i, §§1988(b), 2617, 2000d-3, 12102, 1981a, Exec. Law 296–297, HCQIA, CPL 190.25(4), §1367) are official-source text, **[unverified — confirm with counsel]**. **Kill list (never cite):** *Tarpley* as a plaintiff comparator (it is adverse), *Breest v. Haggis*, *Reynaud*, *McDonnell Douglas / Mt. Healthy / Price Waterhouse / Briscoe v. LaHue / McKennon* (not verified in corpus). Verdict comparators (*Walker v. Ascension* ~\$10M, *Pizarro* \$1.725M, *Walsh/Su v. Tara*) are UNVERIFIED_WEB — mediation atmospherics only, always flagged.
- **Identity hygiene.** Defendant is United Health Services (Binghamton, EIN 16-1165049, non-profit; FY2024 revenue ~\$1.16B ASSERTED [unverified — ProPublica 990]) — **not** Universal Health Services (NYSE: UHS), **not** UnitedHealth Group. Borrowing either stranger’s rap sheet is sanctions-grade error. Unresolved r2-vs-r4 caption question (“UHS of Delaware”) — counsel to confirm the caption entity before any size/wealth argument.
- **Posture figures.** \$100M / \$40M are NEGOTIATION POSTURE (ASSERTED), never pleaded damages; the defensible envelope is Tier 2 (\$4.34M–\$16.57M ESTIMABLE). Rule 11 / mediator-credibility caveat on every use; counsel approval required.
- **No guarantees.** All probabilities are subjective estimates on the current record; re-run `win-probability.md` on each of its 16 update triggers. **Counsel review required before any element of this plan is used externally.** Open factual flags to resolve first: (1) 2022-vs-2024 operative year; (2) Florida-contract execution; (3) arrest-date/intra-day sequencing; (4) fiancée/complainant linkage; (5) FR-09 referent.

Assembly receipt

Built 2026-08-02 solely from: `strategy/damages-architecture.md`, `strategy/legal-story.md` (cold open verbatim), `strategy/obstacle-counter-matrix.md`, `strategy/pressure-point-map.md`, `strategy/win-probability.md`, `data/action_items.json` (16 items), `data/pacing_digest.md`, and headline findings of `data/research/r1_malicious_prosecution.json`, `r2_citation_audit.json`, `r3_employment_claims.json`, `r4_punitive_identity.json`. No fact, figure, or citation appears here that is not present in those inputs.

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